Spotify Kids Privacy Policy

Effective as of 11 February 2020

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1. Introduction

Thanks for using our new app developed for children, that we call "Spotify Kids"!

At Spotify, we want to give you and your child the best possible experience to ensure that you enjoy Spotify Kids. In particular, the privacy and security of your and your child's personal data is, and will always be, enormously important to us.

In the Spotify Privacy Policy, we transparently explain how and why we gather, store, share and use your personal data. In this Spotify Kids Privacy Policy ("Policy"), we provide additional information which can help you, as a parent, understand what data is collected and processed when using Spotify Kids.

2. About this Policy

This Policy sets out the essential privacy details relating to Spotify Kids. The terms governing Spotify Kids are defined in our Family Terms and Conditions of Use. The aim of this Policy is to:

1. *Ensure that you understand what personal data we collect about you and your child when using Spotify Kids, the reasons why we collect and use it, and who we share it with;*
2. *Explain the additional privacy and security measures and controls we have implemented for Spotify Kids in order to provide a good environment for your child; and*
3. *Explain the available rights and choices in relation to the personal data we collect and process about you and your child when using Spotify Kids, and how we will protect the privacy of your child.*

We hope this Policy helps you understand our privacy commitment to you and your child. For further clarification of the terms used in this Policy please visit our Privacy Center on spotify.com. For information on how to

contact us if you ever have any questions or concerns, please see How to contact us below.

3. Parental controls and security

We are committed to protecting the privacy of your child's personal data. We have implemented appropriate technical and organisational measures to help protect the security of your child's personal data; however, please note that no system is ever completely secure. We have implemented various policies including pseudonymization, encryption, access, and retention policies to guard against unauthorised access and unnecessary retention of personal data in our systems.

To help ensure a good environment for your child when using Spotify Kids, we've also implemented the following controls:

- *Parental protection - in order to access and enable certain functions in Spotify Kids, such as creating or deleting a child's account and changing the account settings, you as a parent need to provide a verification code. This allows you to control what features your child may use on Spotify Kids and prevents your child from changing settings by themselves.*

- *Appropriate content - Spotify Kids will only contain age-appropriate content, selected by our editors. At account setup, you will have the option to select what kind of content your child's Spotify Kids account should contain.*

In the Spotify Privacy Policy you can learn more about the rights and preferences applicable to any of your personal data which is processed by Spotify. You can, at any time, access the personal data associated with the Spotify Kids account. You can also request that we delete the personal data associated with the Spotify Kids account. In addition, if you request deletion of your own Spotify account, the personal data associated with the Spotify Kids account will automatically be deleted.

If you have any questions about your child's privacy, your rights, or how to exercise them, please contact our Data Protection Officer using the "Contact Us" form on the Privacy Center. We will respond to your request within a reasonable period of time upon verification of your identity. If you have concerns around our processing of your child's personal data, we hope you will continue to work with us to resolve them. However, you can also contact and have the right to lodge a complaint to the Swedish Data Protection Authority (Datainspektionen) or your local Data Protection Authority.

4. How do we collect your child's personal data?

When you and your child use Spotify Kids, we collect your personal data in the following ways:

1. *When you create a Spotiy Kids account – when you create a Spotify Kids account, we collect certain personal data so your child can enjoy Spotify Kids, including chosen name and, optionally, birthdate. You are also able to choose e.g.*

an avatar and a color to personalize your child's Spotify Kids account. In addition, we collect the country you provided in your Spotify account.

2. *Through the use of Spotify Kids – when you and your child use Spotify Kids, we collect personal data about your use of Spotify Kids, such as what songs you have played and what songs you have saved as favorites.*

5. What personal data do we collect from you and your child?

We have set out in the tables below the categories of personal data we collect and use about you and your child:

Personal data collected when you create a Spotify Kids account

Categories of personal data	*Description of category*

User Data	***This is the personal data that is provided by you or collected by us to enable you to sign up your child and use Spotify Ki This includes the chosen name, and birthdate. You will also able to choose e.g. a color and an avatar for your child's Spotify Kids account. In addition, we use the country you provided in your Spotify account.*** ***Some of the personal data we will ask you to provide is required in order to create your child's Spotify Kids account such as chosen name. You also have the option to provide u with your child's birthdate and select a color and an avatar i order to make your child's Spotify Kids account more personalized.***

Personal data collected through the use of Spotify Kids

Categories o personal dat	***Description of category***

Usage Data	***This is the personal data that is collected about you and your child when you are using Spotify Kids. This may include:*** ● ***Information about interactions with Spotify Kids which includes the date and time of any requests made, songs listened to or saved, and any content that has been watched.*** ● ***Technical Data which may include URL information, IP address, the types of devices you are using to access or connect to Spotify Kids, unique device IDs, device attributes, network connection type (e.g. WiFi, 3G, LTE, Bluetooth) and provider, network and device performance, browser type, language, information enabling digital rights management, operating system, and Spotify application version.***

6. What do we use your child's personal data for?

We have set out in the table below the reasons why we process your and your child's personal data, the associated legal bases we rely upon to legally permit us to process your and your child's personal data, and the

categories of personal data (identified in What personal data do we collect from you and your child?) used for these purposes:

Description of why Spotify processes your and your child's personal data ("processing purpose")	***Legal basis for the processing purpose***	***Categories of person data used by Spotify for the processing purpose***
To provide, personalize, a improve your and your child's experience with Spotify Kids, for example providing customized, personalized, or localized content, recommendation and features.	• ***Performance of a Contract*** • ***Legitimate Interest***	• ***User Data*** • ***Usage Data***

To understand how you a your child access and use Spotify Kids, to ensure technical functionality of Spotify Kids, develop new products and services, an to analyze your and your child's use of Spotify Kids including your and your child's interaction with products, and services th are made available, linked to, or offered through the Spotify Service.	• *Perfor mance of a Contrac t* • *Legitim ate Interest*	• *Us er Da ta* • *Us ag e Da ta*

If you require further information about the balancing test that Spotify has undertaken to justify its reliance on the legitimate interest legal basis under the GDPR, please see Section 11 How to contact us for further details on how to contact us.

7. Sharing your child's personal data

We have set out the categories of recipients of the personal data collected or generated through your and your child's use of Spotify Kids.

Information we share with your permission

Categories of Recipients	Reason for sharing
Third Party Applications you connect to the Spot Kids account	If you connect the Spotify Kids account to a Third Part Application, for example, audio, television, or automotive platforms, we may share User Data and Usage Data, as defined above, so you can connect the Spotify Kids account. We will not share any personal data without first obtaining your permission.

Other information we may share

Categories of Recipients	Reason for sharing
Service Provide and Others	We use technical service providers which may operate the technical infrastructure that we need to provide Spotify Kids, in particular providers which host, store, manage, ar maintain the Spotify application, its content and the data w process.
Other Spotify Group Compani	We will share your and your child's personal data with oth Spotify Group companies to carry out our daily business

	operations and to enable us to maintain and provide Spot Kids to you and your child.
Law Enforceme and Data Protection Authorities	***We will share your and your child's personal data when w in good faith believe it is necessary for us to do so in orde to comply with a legal obligation under applicable law, or respond to valid legal process, such as a search warrant, court order, or a subpoena.*** ***We will also share your and your child's personal data where we in good faith believe that it is necessary for the purpose of our own, or a third party's legitimate interest relating to national security, law enforcement, litigation, criminal investigation, protecting the safety of any person or to prevent death or imminent bodily harm, provided tha we deem that such interest is not overridden by your and/ your child's interests or fundamental rights and freedoms requiring the protection of your and/or your child's perso data.***

Purchasers of o business	***We will share your and your child's personal data in those cases where we sell or negotiate to sell our business to a buyer or prospective buyer. In this situation, Spotify will continue to ensure the confidentiality of your and your child's personal data and give you notice before your and your child's personal data is transferred to the buyer or becomes subject to a different Privacy Policy.***

8. Data retention and deletion

We keep your and your child's personal data only as long as necessary to provide you and your child with Spotify Kids and for legitimate and essential business purposes, such as maintaining the performance of Spotify Kids, making data-driven business decisions about new features and offerings, complying with our legal obligations, and resolving disputes. We keep some of your and your child's personal data for as long as you are a user of Spotify Kids, for example, saved songs, and account information.

If you request, we will delete or anonymise your and your child's personal data so that it no longer identifies you or your child, unless we are legally allowed or required to maintain certain personal data, including situations such as the following:

- ***If there is an unresolved issue relating to your and/or your child's account or an unresolved claim or dispute we will retain the necessary personal data until the issue is resolved;***

- ***Where we are required to retain the personal data for our legal, tax, audit, and accounting obligations, we will retain the necessary personal data for the period required by applicable law; and/or,***

- ***Where necessary for our legitimate business interests such as fraud prevention or to maintain the security of our users.***

9. Transfer to other countries

We may transfer your and your child's personal data to other countries as described in Section 8 in the Spotify Privacy Policy.

10. Changes to this Privacy Policy

We may occasionally make changes to this Policy.

When we make material changes to this Policy, we'll provide you with prominent notice as appropriate under the circumstances, e.g., by sending you an email. We may notify you in advance.

Please, therefore, make sure you read any such notice carefully.

11. How to contact us

Thank you for reading this Policy in addition to our Spotify Privacy Policy. If you have any questions about this Policy or our Privacy Policy, please

contact our Data Protection Officer by using the "Contact Us" form in the Privacy Center or by writing to us at the following address:

Spotify AB
Regeringsgatan 19
111 53 Stockholm
Sverige